

Tentative Rulings
August 26, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

12. *Melendez v. Kennedy, et al*, Case No. CIVSB2530506
Motion to be Relieved as Counsel for Plaintiff Melendez
8/26/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion by DK Law to be relieved as counsel for Plaintiff Melendez

Here, the DK Law firm seeks to be relieved as counsel for Plaintiff Melendez. The motion is supported by a declaration establishing good cause pursuant to rule 1.16(b) of the Rules of Court. The Court is inclined to **GRANT** this unopposed motion. Relief is not final until the ruling is served on Plaintiff and a filed proof of service demonstrating that service.

Plaintiff Melendez is ordered to appear at the next hearing. The Court will inquire regarding his plans regarding representation and prosecution of this case.

13. *Peimbert v. Perez, et al*, Case No. CIVSB2412010
Defendant's Motion for Leave to File an Amended Answer
8/26/26, 9:00 a.m., Dept. S-17

This matter was continued from June 11, 2026

The Court is inclined to **GRANT**.

Here, the initial matter was brought as an *ex parte* application for leave to file an amended answer on April 22, 2026, in order to clarify a statute of limitations affirmative defense. The supporting declaration did not include a proposed amended answer at that time. (See Lopez Decl., filed April 21, 2026.)

The matter was twice continued to allow the parties to continue to meet and confer and also for further briefing. A supplemental declaration that included a copy of the proposed First Amended Answer was submitted on July 30, 2026. No further opposition was submitted.
